

the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on April 27, 2026. The withdrawal is effective immediately.
3. Withdrawing Counsel is ordered to serve a copy of the Order (MC-053) to Modvans by mail at its last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court. Counsel is also ordered to serve a copy of the Order to her client contact at Modvans.
4. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).
5. No appearance is required at the hearing on August 12, 2026.

11. 9:00 AM CASE NUMBER: C25-00150

CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE

2ND AMENDED COMPLAINT

FILED BY: DOYLE, BRIAN

TENTATIVE RULING:

Introduction

Before the Court is all the captioned Defendants' Demurrers and Motions to Strike. The Demurrers and Motions to Strike relate to Plaintiff's SAC for seven causes of action for employment-related claims revolving around sexual batter and negligence filed on January 26, 2026.

For the following reasons, **Defendants' Demurrer is sustained in part and overruled in part. The Demurrer is sustained without leave to amend for the third, fourth, fifth, and sixth cause of actions as to Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.**

The Demurrer is overruled as to battery, and sexual battery causes of action against Defendant McMichael. The Demurrer is sustained without leave to amend for the general negligence and NIED causes of actions against Defendants Spencer and McMichael. The Demurrer is overruled for the fifth cause of action for IIED is against Defendant McMichael.

Meet and Confer Requirement

Defendants satisfied their meet and confer requirement regarding their Demurrers and Motions to Strike in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Michael W. Feenberg. Defendants' Counsel transmitted a meet and confer letter to Plaintiff's counsel on February 17, 2026. (Feenberg Decl. at ¶ 2.) On February 25, 2026, counsel for Plaintiff and counsel for Defendant participated in a telephonic meet and confer conference regarding the issues raised in this demurrer. (*Id.*) The parties did not reach an agreement to resolve the objections raised in this demurer. (*Id.*)

Statement of Facts

Plaintiff was employed by Party Pros beginning in 2012, when she was a minor. (SAC ¶ 11.) At some

point during her employment with Party Pros, Defendant Spencer engaged in "harmful and offensive touching and explicit sexual conduct" with Plaintiff. (SAC ¶ 19.) After Plaintiff reported Spencer's misconduct to Defendant McMichael, Plaintiff was removed from events with Spencer. (SAC ¶¶ 46-49.) McMichael then took Plaintiff on work events and provided her with alcohol. (Id.) At some point while Plaintiff was still a minor, Plaintiff entered into a romantic relationship with McMichael. (SAC ¶¶ 51-52.) The relationship persisted after Plaintiff reached the age of majority. (2L) At some point, the relationship ended, and Plaintiff obtained a restraining order against McMichael due to his alleged harassment and threats against her. (SAC ¶ 53.) In November 2024, Plaintiff reported Spencer's conduct to Party Pros during a meeting where she reported Spencer's unsolicited sexual advances and sexual assaults to her supervisors. (SAC ¶¶ 51-60.) In response, Party Pros did not sever ties with Spencer. (SAC ¶ 61.) Plaintiff experienced severe emotional distress due to Spencer's sexual assaults, McMichael's improper relationship with her, and struggled with substance abuse as a result. (SAC ¶ 67.)

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Applicability of Workers' Compensation Exclusivity Exceptions

Defendants argue that all of Plaintiff's claims are preempted by the workers' compensation exclusivity doctrine. Workers' compensation provides the exclusive remedies for an employee's claims where the alleged wrongful conduct occurs at the worksite, in the normal course of the employer/employee relationship. (*Miklosy v. Regents of the University of California* (2008) 44 Cal. 4th 876, 902 ["Even if such conduct may be characterized as intentional, unfair or outrageous, it is nevertheless covered by the workers' compensation exclusivity provisions."].) However, there are exceptions.

Civil actions are allowed where it is alleged the work-related injury was concealed, worsening the injury to the claimant or Plaintiff, in which case the employer's liability shall be limited to those damages proximately caused by the aggravation. (*Johns-Manville Products Corp. v. Superior Court* (1980) 27 Cal.3d 465, 469; *See also* Lab. Code § 3602(b)(2).) Labor Code section 3602(b)(1) provides that civil actions are permitted where the employer commits or ratifies a willful physical assault.

The Complaint Alleges Injuries in the Scope of Plaintiff's Employment

Plaintiff takes the stance that that in order for Defendants to argue that Workers Compensation is the sole remedy of the employee against her employer, Defendants would need to first show worker's compensation coverage was available and that Plaintiff's claims were accepted and that these predicate evidentiary requirements are substantive factual matters that have nothing to do with pleading challenges. Plaintiff fails to consider that the SAC specifically alleges that the injuries occurred during the scope of her employment.

"Specifically, this grooming process included Defendant TYRONE SPENCER taking Plaintiff to work events between 2013 and 2015, including events she was not assigned to work. For these events for which she was not assigned, Defendant TYRONE SPENCER offered to give Plaintiff extra individual teaching time and attention as an incentive to make her come to these events alone with him." (SAC ¶ 16.)

When a complaint affirmatively alleges facts indicating coverage by workers' compensation laws but fails to state additional facts negating the application of the exclusive remedy rule, no civil action will lie and the complaint is subject to a general demurrer. (*Hughes v. Western MacArthur Co.* (1987) 192 Cal.App.3d 951, 957.) This pleading requirement is jurisdictionally based; if the complaint indicates that the action is within the scope of the workers' compensation law, the superior court has no jurisdiction over it unless additional allegations indicate that an exception to the exclusive remedy rule applies. (See *Deauville v. Hall* (1961) 188 Cal.App.2d 535, 540.)

Exceptions Argued

Here, Plaintiff takes the position that the, "SAC lays out how the Defendants committed or ratified the willful physical assaults and worsened Plaintiff's damages by concealing her injury. Plaintiff has alleged that Defendants knew of Defendants McMichael and Spencer's propensity for harmful conduct at the time of hire, and throughout Plaintiff's employment, including after she reported her abuse twice to her employers in 2015 and then again in 2024. (SAC, ¶12-14; 46,54-63, 64 67.)" (Opposition at p. 5: 4-9.)

Plaintiff argues she has alleged that Defendant Tyrone Spencer took the minor Plaintiff along to work events to provide her with alcohol and then sexually assaulted her, that Defendant Patrick McMichael sexually assaulted the minor Plaintiff under the false auspices of training and protecting her after she reported Mr. Spencer's misconduct, that the Doyle Defendants and corporate Defendants had actual and constructive knowledge at the time of hire and after Plaintiff reported her sexual abuse in 2015 and 2024, and that they failed to protect Plaintiff and other female employees by refusing to take appropriate action. (Opposition at p. 5: 21-28.)

Ratification Willful Physical Assault

Workers' compensation exclusivity bars claims against an employer based on vicarious liability unless the employer "ratified the assault". (*Hart v. National Mortgage & Land Co.* (1987) 189 Cal.App.3d 1420, 1432.) To support employer liability under a theory of ratification a plaintiff must show that the employer has failed to investigate or respond to charges that an employee committed an intentional tort. (*Baptist v. Robinson* (2006) 143 Cal.App.4th 151, 169.)

Defendant argues that no facts in the SAC allege that that any Defendants ratified the alleged assaults made by Defendants Spencer and McMichael. (Reply at pp. 3-4.)

Plaintiff pleads that she disclosed misconduct to her employers once in 2015 and once in 2024. In 2015, Plaintiff alleges that she disclosed Spencer's misconduct only to McMichael. As a result, McMichael removed Plaintiff from events with Spencer. (SAC ¶ 44 ["The occurrences with Defendant Tyrone Spencer only stopped after Plaintiff reported Tyrone Spencer's unwanted sexual acts to Defendant Patrick McMichael"].)

Plaintiff alleges that on November 12, 2024, Plaintiff reported her history of sexual abuse to her employers, Defendants The Party Pros Disc Jockey And Event Services, Inc.; Denon & Doyle; and Party Pros during a meeting with Denon and Doyle employees Brian and Sue Doyle, Tyrone Spencer, Dan Ohrman, partner Kevin Sharp, and Megan Rumsey, where Plaintiff described her history of sexual abuse both in and outside of the scope and course of her employment. (SAC ¶ 58.)

Neither the 2015 reporting to McMichael or the 2024 reporting to the company employees allege facts that show Plaintiff's employer failed to investigate or respond to charges that an employee committed an intentional tort. This exception does not apply to Defendants Party Pros, Denon & Doyle and the individual Doyle Defendants. Thus, the Demurrer is sustained for the third, fourth, fifth, and sixth cause of actions as to Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.

Fraudulent Concealment

An exception exists "[w]here the employee's injury is aggravated by the employer's fraudulent concealment of the existence of the injury and its connection with the employment" (Lab. Code § 3602 (b)(2).)

To withstand a demurrer, an employee must "in general terms" plead facts that if found true by the trier of fact, establish the existence of three essential elements: (1) the employer knew that the plaintiff had suffered a work-related injury; (2) the employer concealed that knowledge from the plaintiff; and (3) the injury was aggravated as a result of such concealment. (*Jimenez v. Gooch's Natural Food Mkts.* (2023) 95 Cal.App.5th 645, 658.) "If any one of these conditions is lacking, the exception does not apply and the employer is entitled to judgment in its favor." (*Silas v. Arden* (2012) 213 Cal.App.4th 75, 91.)

Critically for our purposes, "[t]he exception does not apply where the employee was aware of the injury at all times." (*Silas v. Arden, supra*, 213 Cal.App.4th at p. 91.) This point is fatal. The SAC does not allege that the decedent was unaware of her injury. Nor could it reasonably do so—the nature of the sexual assault and battery injuries pled were of the kind that Plaintiff knew of them as they were happening. (SAC ¶¶ 24-53.) The allegations of the SAC establish that the fraudulent concealment exception to the workers' compensation exclusivity rule does not apply as a matter of law.

Thus, the Demurrer is sustained without leave to amend for the third, fourth, fifth, and sixth cause of actions as to Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.

Plaintiff's Battery and Sexual Battery Claims against Defendant McMichael

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in

plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

A cause of action for sexual battery under Civil Code section 1708.5 requires the batterer intend to cause a "harmful or offensive" contact and the batteree suffer a "sexually offensive contact." The statute further defines "intimate part" as "the sexual organ, anus, groin, or buttocks of any person, or the breast of a female." (Civ. Code § 1708.5(d)(1).) Moreover, the section is interpreted to require that the batteree did not consent to the contact." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1225.)

The previous demurrer was sustained for providing only conclusory statements of assault and harassment. (See previous order.) Plaintiff has increased the operative complaint by 10 pages to include more detailed allegations for the batter and sexual battery cause of actions. Defendants argue that Plaintiff's allegation that McMichael "engaged in sexual intercourse and penetration with Plaintiff(SAC ¶ 51) does not state a claim for battery or sexual battery, because Plaintiff does not allege any "harmful or offensive contact" in connection with this occurrence. However, the SAC does allege that Defendant McMichael intentionally exposed Plaintiff to further sexually offensive contact by engaging in the same egregious conduct that Defendant Spencer did. (SAC ¶ 48.) This will suffice to withstand an attack on the pleadings.

The Demurrer is overruled as to battery, and sexual battery causes of action against Defendant McMichael.

General Negligence and NIED Against Defendants Spencer and McMichael

The third cause of action for general negligence and the sixth cause of action for NIED is against all Defendants. (SAC ¶¶ 81, 108.)

As analyzed above, the Demurrer was sustained as to for the third, fourth, fifth, and sixth cause of actions as to Defendants Party Pros, Denon & Doyle and the individual Doyle Defendants for lack of ratification.

The allegations of the general negligence cause of action are pointed at the conduct of Defendants Party Pros and Denon & Doyle's failure to manage and supervise Defendants Spencer and McMichael and to prevent Plaintiff from harm. (SAC ¶¶ 81-87.) Plaintiff does not allege any negligent acts on behalf of Defendants Spencer or McMichael. (Id.) This was true of the FAC as well. (FAC ¶¶ 35-41.) All the allegations against Defendants Spencer or McMichael are for their intentional actions. The Demurrer is sustained without leave to amend for the general negligence and negligent infliction of emotional distress causes of actions against Defendants Spencer and McMichael.

IIED

The fifth cause of action for IIED is against all Defendants. (SAC ¶ 81.)

As analyzed above, the Demurrer was sustained as to for the third, fourth, fifth, and sixth cause of actions as to Defendants Party Pros, Denon & Doyle and the individual Doyle Defendants for lack of ratification.

Defendant demurs to the IIED cause of action. The elements of an IIED cause of action are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause or reckless disregard of the

probability of causing emotional distress; (3) severe emotional suffering; and (4) actual and proximate causation of the emotional distress. (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 780.) To satisfy the element of extreme and outrageous conduct, defendant's conduct "must be so extreme as to exceed all bounds of that usually tolerated in a civilized society." (Id. at 780.) Defendants argue that Plaintiff has not alleged facts from which extreme and outrageous conduct may be inferred as to Defendant McMichael. (Demurrer at p. 20: 9-14; Reply at p. 8: 19-22.) The SAC alleges Defendant McMichael had sexual offensive contact with Plaintiff including sexual intercourse while being aware Plaintiff was a minor. (SAC ¶¶ 13, 48-51.) These allegations add up to enough facts to plead the Defendant McMichael's conduct was so extreme as to exceed all bounds of that usually tolerated in a civilized society.

The Demurrer is overruled for the fifth cause of action for IIED is against Defendant McMichael.

Conclusion

For the reasons analyzed above, **Defendants' Demurrer is sustained in part and overruled in part. The Demurrer is sustained without leave to amend for the third, fourth, fifth, and sixth cause of actions as to Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.**

The Demurrer is overruled as to battery, and sexual battery causes of action against Defendant McMichael.

The Demurrer is sustained without leave to amend for the general negligence and NIED causes of actions against Defendants Spencer and McMichael.

The Demurrer is overruled for the fifth cause of action for IIED is against Defendant McMichael.

12. 9:00 AM CASE NUMBER: C25-00150
CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE
STRIKE PORTIONS OF 2ND AMENDED COMPLAINT
FILED BY: DOYLE, BRIAN
TENTATIVE RULING:

Introduction

Defendants The Party Pros Disc Jockey and Event Services, Inc., a California corporation. doing business as Denon & Doyle (also sued incorrectly herein as Denon & Doyle, and Party pros) (defined herein as the "Company" or "Party Pros"); Tyrone Spencer, an individual; Brian Doyle, an individual; Susan Doyle, an individual; and Patrick McMichael, an individual (collectively, Defendants) move the court for an order striking the following allegations from Plaintiff s Second Amended Complaint ("SAC"):

1. Paragraphs 73 and 80 seeking punitive damages as against defendant McMichael.
2. Paragraphs 87 seeking punitive damages as against all defendants.
3. Paragraph 102 seeking punitive damages as against Party Pros.
4. Paragraph 107 seeking punitive damages against defendants McMichael, Brian and